

FIRST ENDORSEMENT

Chief Prosecutor, APU, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr, Department Advocate's Office, March 25, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-27088 against Police Officer Justin Senese, Tax Registry No. 959978. The case was conferenced on March 14, 2024, before Assistant Deputy Commissioner of Trials Vanessa Facio-Lince, who approved the dismissal of the charges in return for the recommended negotiated penalty of Command Discipline Schedule "A" and forfeiture of three (3) vacation days.

Andre D. Applewhite

Andre Applewhite

Chief Prosecutor, APU

New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142(Rev. 8-89)-2

CASE NO. 2022-27088
BOOK & PAGE NO. Page 1 of 2
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, SENESE	FIRST JUSTIN	M.I. E	COMMAND 025 PRECINCT
SHIELD NO. 21424	TAX REGISTRY NO. 959978	SOCIAL SECURITY NO.	DATE APPOINTED 10/07/2015	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Justin SENESE, on or about June 11, 2021, at approximately 0420, while assigned to 025 PCTand on duty, in the vicinity of East 115th Street and Pleasant Avenue, New York County, abused his authority as amember of the New York City Police Department, in that he questioned an individual without police necessity.	DISMISSED	A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 3.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Justin SENESE, on or about June 11, 2021, at approximately 0420, while assigned to 025 PCTand on duty, in the vicinity of East 115th Street and Pleasant Avenue, New York County, abused his authority as amember of the New York City Police Department, in that he frisked an individual without police necessity.	DISMISSED	
3 . Police Officer Justin SENESE, on or about June 11, 2021, at approximately 0420, while assigned to 025 PCTand on duty, in the vicinity of East 115th Street and Pleasant Avenue, New York County, abused his authority as amember of the New York City Police Department, in that he searched an individual	DISMISSED	

DC Benkovic
FIRST DEPUTY COMMISSIONER

4/23/24
DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

5/14/24
DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-27088
BOOK & PAGE NO. Page 2 of 2
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, SENESE	FIRST JUSTIN	M.I. E	COMMAND 025 PRECINCT
SHIELD NO. 21424	TAX REGISTRY NO. 959978	SOCIAL SECURITY NO.	DATE APPOINTED 10/07/2015	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
which included going into persons' pockets without sufficient legal authority. 4 . Police Officer Justin SENESE, on or about June 11, 2021, at approximately 0420, while assigned to 025 PCT and on duty, in the vicinity of East 115th Street and Pleasant Avenue, New York County, abused his authority as a member of the New York City Police Department, in that he failed to provide an individual with a business card without sufficient legal authority.	DISMISSED	

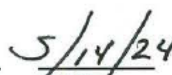

FIRST DEPUTY COMMISSIONER


DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)


POLICE COMMISSIONER


DATE

THIRD ENDORSEMENT

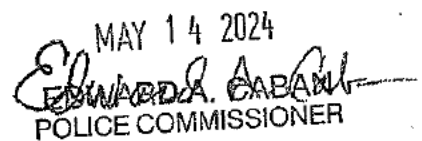
First Deputy Commissioner to Police Commissioner, April 23, 2024. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2022-27088 (CCRB Case #202103568) against Police Officer Justin Senese, Tax #959978, with the recommendation that the Charges and Specifications against Police Officer Senese be dismissed and that Police Officer Senese receive a Schedule "A" Command Discipline and forfeit three (3) vacation days. Assistant Deputy Commissioner, Trials Vanessa Facio-Lince reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

TIK/pk



Tania I. Kinsella
FIRST DEPUTY COMMISSIONER

APPROVED

MAY 14 2024

EDWARD A. CABAN
POLICE COMMISSIONER